

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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EUGENE WHITMORE,

Plaintiff

- against -

**THE CITY OF NEW YORK,
THE NEW YORK POLICE DEPARTMENT,
POLICE OFFICER NILKA VARGAS
(SHIELD#019547)**

Defendant.

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Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

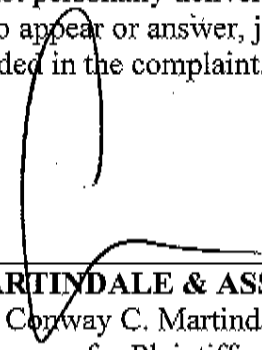
The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 19, 2017



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

NEW YORK POLICE DEPARTMENT

1 Police Plaza
New York, NY 10007

OFFICER NILKA VARGAS (SHEILD # 019547)

46th PRECINCT
2120 Ryer Avenue
Bronx, NY 10457

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

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EUGENE WHITMORE

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
THE NEW YORK POLICE DEPARTMENT,
POLICE OFFICER NILKA VARGAS
(SHIELD#019547)**

Defendant.

=====X

Plaintiff, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by
CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully
shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter "NYPD") officers, including Police Officer Nilka Vargas (hereinafter "VARGAS") mentioned herein were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff Eugene Whitmore (hereinafter “WHITMORE”) is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the dismissal of the underlying criminal case, which occurred on November 22, 2016, in Bronx County, WHITMORE served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. On the afternoon of October 7, 2015, WHITMORE was at work in the Chelsea area of Manhattan when he received a call from a relative informing him that the police in Bronx County were looking for him.
10. WHITMORE immediately contacted the police and made plans to come up to the precinct and speak to the police regrading a robbery.
11. WHITMORE left work early the same day and headed up to the precinct to discuss with the police any information he could provide.
12. Shortly after entering the precinct, WHITMORE was brought into an interrogation room by NYPD officers and handcuffed to a bar in the room.
13. WHITMORE was informed by the NYPD officers that he was implicated in a robbery that took place on August 28, 2015 at the 4 train station at East Burnside Avenue at approximately 3:30pm, whereby an individual had his wallet taken.
14. WHITMORE informed the NYPD officers that it would have been impossible for him to commit that robbery because he was at work that day and couldn't have gotten up to East Burnside from his work location at the time of the robbery.
15. WHITMORE worked in the vicinity of West 23rd Street and 8th Avenue at the time of the incident and didn't leave work until shortly after 3pm and couldn't have possibly made it up to the robbery location in time.
16. Furthermore, WHITMORE provided the contact information for his supervisor at work to confirm his whereabouts on the date and time at issue.
17. Upon information and belief NYPD officers were able to contact WHITMORE's supervisor who confirmed for the NYPD officers that he was able to view the

surveillance video at WHITMORE's job location and verify that he clocked out at 3:05pm.

18. Despite the aforementioned information being provided, NYPD officers, including VARGAS, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully handcuffed and arrested WHITMORE. The officers arrested WHITMORE intentionally, and he was at all times aware he was being arrested and did not consent to being arrested.
19. After arresting and handcuffing WHITMORE, officers escorted him to a jail cell where he awaited being taken to central booking in Bronx County.
20. WHITMORE was eventually moved to central booking and was eventually arraigned on felony charges of Grand Larceny in the Fourth Degree and other lesser charges.
21. Approximately twenty four hours after he was arrested, Plaintiff was released from custody on his own recognizance.
22. After approximately 12 to 14 court appearances, all the while professing his innocence, all charges were dismissed on November 29, 2016.
23. As a result of being arrested by NYPD officers, WHITMORE suffered permanent psychological and emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.
25. The officers who arrested WHITMORE, as described in paragraphs 9-23, intended to confine him. WHITMORE was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.
27. In arresting WHITMORE as described in paragraphs 9-23, the arresting NYPD officers, including VARGAS, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
28. In arresting WHITMORE as described in paragraphs 9-23, the arresting NYPD officers, including VARGAS, sought either a detriment to Plaintiff or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
29. As a result of defendants' abuse of process, WHITMORE sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.
31. In arresting WHITMORE as described in paragraphs 9-23, the arresting NYPD officers, including VARGAS, acted with malice and without probable cause.

32. As a result of being maliciously prosecuted by the arresting NYPD officers, including VARGAS, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.

34. Upon information and belief, the officers who illegally arrested WHITMORE were at all times relevant duly appointed and acting officers of the City of New York Police Department.

35. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

36. Plaintiff is and at all times relevant herein a citizen of the United States and resident of Kings County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

37. The defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

38. On or about October 7, 2015, as described in paragraphs 9-23, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched, seized,

Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

39. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:

- (a), Freedom from illegal search and seizure,
- (b) Freedom from false arrest
- (c) Freedom from malicious prosecution

40. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

41. The direct and proximate result of the NYPD officers' acts are that the Plaintiff has suffered severe and permanent psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

SIXTH CAUSE OF ACTION: NEGLIGENCE

42. Paragraphs 1-41 are incorporated by reference as though fully set forth herein.

43. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, and malicious prosecution, were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.

44. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

45. Paragraphs 1-44 are incorporated by reference as though fully set forth herein.
46. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
47. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause.
48. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
49. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize WHITMORE.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING

50. Paragraphs 1-49 are incorporated by reference as though fully set forth herein.

51. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals.

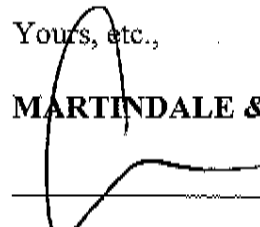
WHEREFORE, Plaintiff EUGENE WHITMORE demands judgment against the Defendant in the sum of \$1,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

June 19, 2017

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC


By: **Conway C. Martindale II**
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

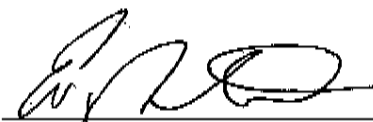
VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
June 22 2017


EUGENE WHITMORE

Subscribed and sworn to before me, this 22th day of June 2017


Notary Public

LANETTE BARNES
Notary Public, State of New York
No. 04BA6349837
Qualified in Bronx County
Commission Expires Oct. 31, 2020

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Defendant

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
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New York, NY. 10168
(212) 405-2233

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10007

OFFICER NILKA VARGAS (SHEILD # 019547)
46th PRECINCT
2120 Ryer Avenue
Bronx, NY 10457